



Comprehensive Trademark Search Report

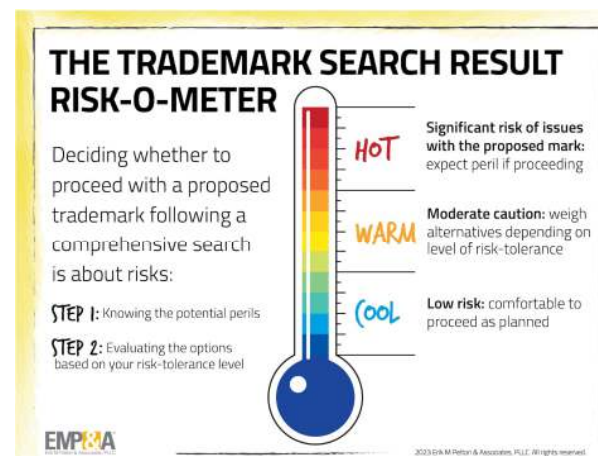
The purpose of conducting a comprehensive trademark search is to provide the client with a clear picture of potentially similar trademarks that are in use, registered, or pending at the USPTO. The client can then evaluate and assess the risks and options to make an informed decision about whether to begin using the proposed mark and/or apply for a federal trademark registration.

What does the report cover?

A comprehensive trademark search covers the United States Patent and Trademark Office's (USPTO) trademark database, business records, internet, and state trademark registries. The search parameters generally cover not only exact matches of the mark being searched for, but also variations in sound, spacing, and spelling. An EMP&A attorney has reviewed the search report data and written a summary (attached) that highlights any potential risks and assesses the risk level of proceeding with your chosen mark.

Disclaimer:

The information included in the attached summary is based on the data that was available at the time the search report was conducted. *While this report contains our opinion on the potential registrability of your trademark, EMP&A makes no guarantees as to the success of registering the mark.*



TRADEMARK SEARCH REPORT SUMMARY & ANALYSIS

Mark: TAMORO

Classes 9, 11, 42, 45: Consumer smart-home system/ecosystem with AI features.

Potential Conflicts with Registered Trademarks

The purpose of a trademark is to identify where a particular good or service comes from. Before registering a mark on the Principal Register, the USPTO must evaluate whether any existing registered trademarks are likely to be confused with the one being applied for. The two main factors an Examining Attorney will look at are 1) the appearance of the two marks and 2) the relevant goods or services associated with each mark. However, this initial analysis may be outweighed by other relevant factors, including the differing commercial impressions created by the marks (meaning the impression consumers have upon seeing a mark in the marketplace) and the number of similar marks that have already been registered.

When determining whether certain goods or services are similar for the purposes of confusion, the USPTO typically does not solely consider whether the goods or services are in the same category, rather, it looks to whether they are related. Goods and services are usually considered “related” if there are many companies that produce both goods or services, or categories of good or services, under the same mark. The more similar the goods or services are, the less similar the marks have to be to be confusing, and vice versa.

While the search did not return any *exact* matches, it did include several results for registrations and applications that may be considered confusingly similar to your proposed mark, including:

- **TOMORO** (Ser. No. [79411529](#))
 - **Class 9:** Downloadable artificial intelligence (AI) computer software for summarizing texts; downloadable computer software applications using artificial intelligence to generate images from text; downloadable computer software using machine learning for developing predictive models; downloadable computer software using artificial intelligence (AI) for enabling computers to learn to perform tasks autonomously; downloadable text-to-image generator software using artificial intelligence (AI); downloadable software for controlling artificial intelligence (AI) computer software for enabling computers to learn to perform tasks autonomously and downloadable software for generating text AI tasks; downloadable artificial intelligence (AI) computer software platforms that provide real-time, integrated business management intelligence by combining information from various databases and presenting it in an easy-to-understand user interface; interactive software using artificial intelligence for analyzing data and interacting with humans; downloadable computer programs and downloadable computer software using artificial intelligence for analyzing data in the field of deep learning; downloadable computer software in the nature of artificial intelligence

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models for performing generative text AI tasks; downloadable computer software in the nature of artificial intelligence models for performing natural language processing AI tasks; downloadable computer programs and downloadable computer software for the artificial production of images and text; downloadable computer software applications using graph algorithm techniques for collecting and organizing data in the field of deep learning; downloadable communication software applications for connecting artificial intelligence (AI) computer software applications with software applications and tools which produce the same output from the same input; downloadable communication software for connecting applications which use artificial intelligence to enable computers to learn to perform tasks autonomously; downloadable communication software for connecting artificial intelligence (AI) computer software applications with humans, to enable interaction with humans; **Class 42:** Providing technological advice in the field of artificial intelligence autonomous agents; technological services relating to implementation patterns for technical and behaviour integration for artificial intelligence autonomous agents in the workplace; technology consultation in the field of artificial intelligence autonomous agents; providing online non-downloadable computer programs for artificial intelligence on data networks; Software as a Service [SaaS] featuring artificial intelligence platforms; Platform as a Service [PaaS], namely, providing artificial intelligence software platforms; research and development services in the field of artificial intelligence; research and development services in the field of artificial intelligence autonomous agents; providing product development and engineering services in the field of artificial intelligence; designing of software relating to behavioural science and artificial intelligence; providing technical research in the field of artificial intelligence; artificial intelligence software design and development services; artificial intelligence software customisation services; artificial intelligence software design for others; artificial intelligence software consultancy services; artificial intelligence software programming and implementation; IT services, technical support in the nature of troubleshooting of software, technical assistance in the nature of resolution of problems in connection with computer hardware, video and electronic communication and computer software, and technological advisory services relating to artificial intelligence autonomous agent software; design, research, development, programming, implementation, installation, updating, modification, customisation, configuration, programming, maintenance, monitoring, repair and engineering of artificial intelligence autonomous agent software: Software as a Service [SaaS] featuring software using artificial intelligence for performing generative text AI tasks; Software as a Service [SaaS] featuring software using artificial intelligence for performing natural language processing AI tasks; providing a website featuring non-downloadable software using artificial intelligence for conducting tasks with artificial intelligence autonomous agents; advisory and information services relating to all the aforesaid services

- Basis: filed in 2024.

- Evidence of use: <https://www.linkedin.com/company/tomoro-ai/?originalSubdomain=uk>.
- Int'l designations in: AU, EM, SG, and GB
- **TASORO** (Reg. No. [6154397](#))
 - **Class 6:** Metal pulls for cabinets, doors, drawers; Common metal pulls; Common metal drawer pulls; Metal locks for doors, windows; Metal keys for locks; Metal multi-point locking system in a wood door; **Class 11:** Shower faucet extensions; Shower head sprayers; Shower heads; Shower tubs; Showers; Hand-held showers; Plumbing fixtures, namely, shower sprayers; Sinks integrated into counters or countertops; **Class 20:** Shower rods.
 - Basis: in use since 2019
 - Evidence of use: <https://tasoroproducts.com/>.
- **TAMOP** (Reg. No. [6590608](#))
 - **Class 9:** D spectacles; Camcorders; Eyeglasses; Loudspeakers; Smartwatches; Sunglasses; Bags adapted for laptops; Batteries, electric; Battery chargers; Burglar alarms; Cabinets for loudspeakers; Car video recorders; Cases for smartphones; Cell phone straps; Computer hardware and recorded software system for remotely monitoring environmental conditions and controlling devices within a building, facility, grounds, or designated spatial area; Computer keyboards; Computer peripheral devices; Covers for smartphones; Covers for tablet computers; Data cables; Data processing apparatus; Diagnostic apparatus for testing food; Document printers; Electric door bells; Electric sockets; Electric wires; Electrical adapters; Electronic advertisement boards featuring a neon lamp; Electronic book readers; Electronic calculators; Electronic collars to train animals; Global positioning system; Mouse pads; Pocket translators, electronic; Portable media players; Protective films adapted for computer screens; Protective films adapted for smartphones; Protective helmets; Radar apparatus; Selfie sticks; Sleeves for laptops; Solar batteries; Switches, electric; Tripods; Video baby monitors; Video monitors; Video screens; Wireless computer mice; Calibration devices for calibrating X-ray diagnostic apparatus other than for medical use; Computer mouse.
 - Basis: in use since 2021
 - Evidence of use: appears to no longer be in use.
- **ALTAMORO** (Ser. No. [50007243](#))
 - **Class 11:** Lighting fixtures; Luminaries; Projection spotlights; Light projectors.
 - Basis: intent to use filed 2026.
- **ALTAMORO** (Ser. No. [99936486](#))
 - **Class 11:** Lanterns for lighting; Lamps; Light projectors; Projection spotlights.
 - Basis: intent to use filed 2026.

There is a moderate-high chance that the USPTO would cite any or all of the above marks as potentially likely to cause confusion with your mark, and block approval of your proposed mark for registration, *especially the highlighted TOMORO mark*. We believe that it is rather likely that an application for TAMORO would draw a 2(d) refusal given the arguable relatedness of the

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goods and services in the application and the similar appearance, sound, and meaning with the TOMORO mark. If that happens, we could respond with arguments based on differences in the marks and the diluted field of TOMORROW-formative marks. The procedure for the diluted field argument is that we would wait for the Examining Attorney to issue a refusal and then argue the diluted field in response. However, please note that, while we have had success with such arguments in the past, each case is different and decided by an independent Examiner.

Further, if we get initial approval from the USPTO, OpenAI/Tomoro AI Ltd may try to attack the application. We note that OpenAI is litigious against trademark applications and registrations, at least for marks that may be confused with its core ChatGPT product. The owner of the mark is still Tomoro AI Ltd, but it is not clear to us the amount of control that OpenAI might have over the TOMORO mark. While we generally agree with your assessment that it appears the TOMORO mark may be in “wind down,” the company is still apparently using its name (<https://www.linkedin.com/company/tomoro-ai/posts/?feedView=all>). According to the USPTO records, TOMORO AI Ltd also affirmatively agreed to an Examiner’s Amendment, allowing the TOMORO mark to proceed to publication even after the announcement of the purchase (<https://tsdr.uspto.gov/documentviewer?caseId=sn79411529&docId=EXAMA20260715101549&linkId=6#docIndex=5&page=1>). This does not indicate with certainty that the TOMORO mark will continue to be used, but it is too early to say what the plans are for this mark or to try to argue that the mark is abandoned and should not be registered. Making any decisions based on an assumption that TOMORO will be abandoned entirely is certainly a risk, and it cannot really be quantified because it is entirely out of your control.

In summary, we think that there is a significantly elevated risk associated with applying for the TAMORO mark. If you decide to proceed, we would suggest pursuing an application with a more limited scope of goods and services, avoiding any goods or services for “automation” or “AI”.

Potential Conflicts with Unregistered Trademarks

Any person or business that has been using a similar, unregistered trademark may be able to claim that you are infringing their [common law trademark rights](#), which stem from use, by using your mark or filing an application to register it at the USPTO. However, the likelihood of confusion analysis is similar here, and depends largely on who was using the mark first and how common the words in the mark are. The more widely the words are used (and/or the more different the marks/goods/services/customers are), the less likely it is that infringement will be found.

Importantly, the search returned several uses of TAMORO as a last name:

- “Tamoro Family History”: <https://www.ancestry.com/last-name-meaning/tamoro>;
- “Tamoro” in Whitepages: <https://www.whitepages.com/name/Tamoro?fs=1&searchedName=TAMORO>;
- “Ar. Ross Tamoro”: <https://ratamoro.carrrd.co/>; and
- “Jimbo Tamoro”: <https://oal.org/Jimbo-Tamoro>.

This is important because the USPTO can refuse a trademark application on the stronger Principal Register on the basis that it is primarily considered a surname, and may only permit a weaker registration on the [Supplemental Register](#). The fact that this surname is somewhat rare and that the wording is a play on the word “TOMORROW” for smart-home solutions we believe the risk is low-moderate that the mark will be refused on this basis. However, as mentioned above, each case is different and decided by an independent Examiner.

The search returned a few other TAMORO or potentially similar trademarks being used by entities in the United States and abroad. However, none of them appear to provide smart-home goods or services under the TAMORO mark, making it unlikely that any of them would have reasons to challenge use of TAMORO in connection with the identified goods or services. Please see the most relevant results below:

- **TAMORO HOME**
 - <https://www.tamorohome.com/>
 - Furniture goods based in Japan
- **TOMARO CONSTRUCTION**
 - <https://tomaroconstruction.com/>
 - Outdoor living space construction
- **THE TAMORA**
 - <https://thetamora.com/>
 - Apartment building in Bali
- **TAMRON**
 - <https://www.tamron.com/global/>
 - A variety of lenses including network surveillance camera lenses

As for the use of TOMORO by OpenAI/Tomoro AI Ltd, given the practical differences between the use of the marks in commerce we believe it is less likely that your use of the TAMORO mark would be challenged. However, we can never predict what a third party might do.

Overall, our analysis is that there is a moderate to high risk that the USPTO would cite another mark against yours and refuse registration and/or find that it is a weaker surname trademark. As noted above, however, there are arguments to be made against either potential refusal, although there is no guarantee that such arguments would be successful. Based on the foregoing, we do not recommend moving forward with an application to register TAMORO at the USPTO, or using the proposed mark, given the elevated risk that it is not approved for registration and the risk that OpenAI/Tomoro AI Ltd will be alerted to your application and try to prevent you from using it. If you do wish to try to register the mark, adding a logo design would help improve the odds of success and lower the risks of refusal as would a more limited scope of goods and services.

Please let me know if you have any questions or would like to proceed with an application to register TAMORO.

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This assessment is made based on the information provided by you and by the data available at the time as reflected in the attached report.

Dated: August 11, 2026

Regards,



Erik Pelton,
ERIK M. PELTON & ASSOCIATES, PLLC®

Enclosure: Search report data